TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633

phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Planning Commission

Phil Blaisdell – Chair ***Jim Ostrowski*** – Vice-Chair
Gary Szczepanski – Secretary ***Tami McCaslin*** – ZBA ex Officio
Mike Tobin – Township Board ex Officio

Dick Hassberger – Zoning Administrator ***Deb Trim –*** Ordinance Enforcement
Deb Sherrod – Recording Secretary

Regular Meeting – Called to order at 7:00 pm by Vice-Chair Ostrowski.

Public Hearing: Consideration of granting a Special Use Permit for the property at 94 W. Arthur Rd. currently zoned as Local Commercial. McCaslin made the motion to open the public hearing; Tobin seconded. Motion passed with all in favor.

Mr. Ridenour began by explaining his project. Acting Chair Ostrowski reviewed the information that has been presented and then asked if the public had any comments or questions. McCaslin made the motion to close the public hearing; Tobin seconded. Motion passed with all in favor.

Roll Call:
Present – McCaslin, Ostrowski, Szczepanski, Tobin, Hassberger, Sherrod
Absent – Blaisdell, excused, Trim
Public – 2 in person; 0 via Zoom

Approval of Minutes:
Approval of the regular meeting minutes of July 11, 2023. Ostrowski made a motion to approve the minutes as presented; Tobin seconded. Motion passed.

Approval of Agenda: Accepted with one addition to New Business.

Zoning Administrator's Report: See Attachment #1
One question was asked and answered.

Building Inspector's Report: See Attachment #3
No questions.

Ordinance Enforcement Report: See Attachment #2
Several comments were made.

Public Comment: Todd Bringold introduced himself and asked about the process for public hearings.

Old Business:
1. Property at 94 W. Arthur Rd. Planning Commission discussion and decision. Acting Chair Ostrowski asked for Mr. Ridenour to explain his detailed plans for this project.

Ostrowski asked a clarifying question about how many buildings there will be; Mr. Ridenour said that he will start with one and then add another building later. Both these buildings are on the site plans. He is working hard to make sure that lighting does not bother the neighboring properties.

There was more discussion concerning the back setbacks which McCaslin felt were not to the zoning ordinance requirement of 25 feet. After much discussion, Mr. Ridenour agreed to comply with the 25 foot setback by adjusting his building's location.

Szczepanski made a motion to approve Mr. Ridenour's request for a special use permit for the property at 94 W. Arthur with all setbacks for C-1 zoning to be met as well as the provisions set forth in the draft copy of the conditions for the Private/Commercial Storage Complex as set out below. McCaslin seconded. Motion passed with four votes in favor and none opposed.

Draft Copy of conditions to be complied with:

Section 18.XX Private/Commercial Storage Complex

- **A. Compliance with Table 3-4:** See Table 3-4 for standards pertaining to minimum lot area, width, frontage, and yard setbacks and maximum building height and lot coverage.
- **B. Additional Standards and Requirements**
  - **1.** Individual Storage Units shall contain a minimum of 360 square feet.

2. Individual Storage Units will be subject to a MINIMUM 6 (six) month lease. Month to month rentals are prohibited, ***except in the case of extensions of the original lease.***
3. No storage of hazardous, toxic, or explosive materials shall be permitted at the Complex. The signed lease shall contain this prohibition.
4. No retail, wholesale, fabrication, manufacturing, or service facilities shall be conducted within the units in any Storage unit or within the Complex.
5. All storage shall be within the enclosed building(s). No outdoor storage shall be allowed within the Complex.
6. Any and all buildings will comply with Clare County and State of Michigan Building Codes pertaining to Pole Type Building Construction.
7. There shall be a minimum of thirty-five(35) feet between buildings within the Complex for driveway, parking and fire lane purposes.
8. The owner of The Complex will be responsible for the adherence to the above restrictions by any lessee, and will be responsible for any fines levied for the violation thereof.

2. Updating Master Plan progress: The date for the workshop has been set for Tuesday, August 22, from 6:00 pm to 8:00 pm.

New Business:

1. Todd Bringold has a request to enlarge his storage facility at 525 W. Arthur. ZA Hassberger explained what he has received for the expansion of an existing storage building. The property is zoned C-2 which allows ministorage with a special use permit. A public hearing will be held on September 12 prior to the regular meeting. Ostrowski made the motion to hold a public hearing for Todd Bringold's expansion of his storage building. Szczepanski seconded. Motion passed with all in favor.

Announcements: Next Regular Meeting will be Tuesday, September 12, at 7:00 pm.

Motion by Tobin to adjourn the meeting; seconded by Szczepanski. Motion passed with all in favor. Meeting adjourned at 7:59 p.m.

Respectfully Submitted,

Gary Szczepanski, Secretary

Attachment #1

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
Zoning Department phone: [313] 530-2606 website: www.lincolntwp.com
e-mail: dickhassbergerl@aol.com

Zoning Administrator: ***Dick Hassberger***

Monthly Zoning Permit Report - July, 2023

Received & Approved

010-023-400-09	1435 Jefferson	Acc. Bldg.	23-06019
010-482-002-00	682 Forest	Retaining Walls & Terracing	23-06023
010-680-192-00	5005 White Birch Ln	Att. Garage & Porch Roof	23-07007
010-034-300-03	0000 Hazel Trail	Acc. Bldgs & Decking	23-07012
010-840-011-00	1929 Arbor Dr	Walkway	23-07010
010-010-300-09	1537 Dukes Trail	Remodel/New Home	23-07011
010-032-200-06	4355 Browns Rd	Additional	23-07013

Applications Denied

010-482-002-00	682 Forest	Deck-Cannot meet setback	23-06023

RV & Temp Storage on Vacant Lot – Received & Approved

010-745-991-00	2556 Spruce Hill	RV on Vacant Lot	23-06048
010-745-975-00	4610 Red Fox Run	RV on Vacant Lot	23-06033
010-746-238-00	4644 Pine Run	RV on Vacant Lot	23-07001
010-298-022-00	2105 W. Lake George	RV on Vacant Lot & TSS	23-07002
010-746-001-00	2760 Spruce Hill	RV on Vacant Lot	23-06029
010-746-320-00	2487 Spruce Hill	RV on Vacant Lot	23-06046
010-680-330-00	5744 Maple Rd	RV on Vacant Lot	23-07003
010-746-042-00	0000 Spruce Hill	RV on Vacant Lot	23-06041
010-008-100-02	0000 Bringold	RV on Vacant Lot	23-07004
010-680-239-00	0000 Wolf Ln	RV on Vacant Lot	23-07005
010-330-100-26	110 W. North St	RV on Vacant Lot	23-06040
010-440-015-00	121 W. North St	RV on Vacant Lot	23-06037
010-746-140-00	2620 White Birch Ln	RV on Vacant Lot	23-06055
010-680-350-00	0000 Elm Run	RV on Vacant Lot & TSS	23-07006
010-746-167-00	4143 Pine Run	RV on Vacant Lot & TSS	23-06049
010-740-317-00	0000 Spruce Hill	RV on Vacant Lot	23-07008
010-746-136-00	0000 Hemlock	RV on Vacant Lot & TSS	23-06054
010-745-977-00	0000 Red Fox Run	RV on Vacant Lot	23-06034
010-680-329-00	5740 Maple Dr	RV on Vacant Lot	23-07009
010-746-177-00	0000 Pine Run	RV on Vacant Lot & TSS	23-06053
010-700-564-00	5106 Beechwood	RV on Vacant Lot & TSS	23-07014

010-660-119-00	0000 Elm Run	RV on Vacant Lot & TSS	23-07015

Violations Pending, Open and Resolved

010-400-001-00	101 Maple St.	Zoning Violation – Fence-	Ongoing
010-324-003-00	Lake Drive	No Zoning Permit-Deck	Letter-Work Halted-Sent to CCBD
010-635-001-00	Maple Street	2 RVs Stored on Lot	Pending
010-100-013-00	Arbor Dr	No Zoning Permit-Deck	Pending Zoning Appl.-Stop Work Ord.-To CCBD
010-700-502-00	Fawn Terrace, E	RV not removed at season end-Sent 2nd & Final Letter	
010-720-632-00	Elm Run	RV not removed at season end-Sent Final Letter	
010-700-564-00	0000 Beech	RV on vacant lot w/o Permit-	Resolved-Closed
010-034-300-03	0000 Hazel Trail	Construction w/o Permits	Resolved-Closed
010-013-200-06	195 W Mannsiding	Multiple Potential Violations	Sent Letter for Contact-Open
010-034-400-12	0000 Hazel Trail	Construction/RVs w/o Permits	Resolved-Closed
010-420-018-00	109 Woodland Walk	RV at Res-Setback Issue	Resolved-Closed
010-400-012-00	305 Maple St	RV at Res-Setback Issue	Sent Letter-Open
010-023-400-09	1480 W Jefferson	Accessory Bldg.-No Permit	Resolved-Closed
010-746-317-00	0000 Spruce Hill	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-308-00	0000 Spruce Hill	RV on Vacant Lot-No Permit	Sent Letter-In Resolution
010-745-975-00	4810 Red Fox Run	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-320-00	2487 Spruce Hill	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-264-00	0000 Red Fox Run	RV on Vacant Lot-No Permit	Sent Letter-In Resolution
010-746-285-00	0000 Red Fox Run	RV on Vacant Lot-No Permit	Sent Letter-In Resolution
010-745-991-00	0000 Spruce Hill Dr	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-321-00	0000 Spruce Hill Dr	RV on Vacant Lot-No Permit	Sent Letter-Open
010-746-339-00	4901 Pine Run	RV on Vacant Lot-No Permit	Sent Letter-In Resolution
010-746-041-00	0000 Spruce Hill	RV on Vacant Lot-No Permit	Resolved-Closed
010-030-100-06	110 W. North St	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-289-00	0000 Spruce Hill	RV on Vacant Lot-No Permit	Sent Letter-In Resolution
010-440-014-00	125 W. North	RV on Vacant Lot-No Permit	Resolved-Closed
010-745-989-00	0000 Red Fox Run	RV on Vacant Lot-No Permit	Sent Letter-Open
010-745-977-00	0000 Red Fox Run	RV on Vacant Lot-No Permit	Resolved-Closed
010-440-015-00	121 W North St	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-009-00	2886 Spruce Hill	RV on Vacant Lot-No Permit	Sent Letter-Open
010-746-311-00	2621 Spruce Hill	RV on Vacant Lot-No Permit	Sent Letter-Open
010+746-313-00	0000 Spruce Hill	RV on Vacant Lot-No Permit	Sent Letter-Open
010-746-332-00	0000 Spruce Hill	RV on Vacant Lot-No Permit	Sent Letter-In Resolution
010-746-333-00	0000 Spruce Hill	RV on Vacant Lot-No Permit	Sent Letter-In Resolution
010-746-001-00	2760 Spruce Hill	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-315-00	0000 Spruce Hill	RV on Vacant Lot-No Permit	Sent Letter-Open
010-746-167-00	4143 Pine Run	RV(3) on Vac. Lot-No Permit	Resolved-Closed
010-746-184-00	0000 Pine Run	RV on Vacant Lot-No Permit	Sent Letter-Open
010-746-170-00	0000 Pine Run	RV on Vacant Lot-No Permit	Sent Letter-In Resolution
010-746-171-00	4042 Pine Run	RV on Vacant Lot-No Permit	Sent Letter-In Resolution

010-746-177-00	4146 Pine Run	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-136-00	0000 Hemlock Ln	RV on Vacant Lot-No Permit	Resolved-Closed
010-746-140-00	0000 White Birch Ln	RV on Vacant Lot-No Permit	Resolved=Closed
010-746-128-00	4239 Buckeye Ct	RV on Vacant Lot-No Permit	Resolved-Closed

ZA Note: When used above, the designation **Resolved** means that the issue has been handled satisfactorily.
The designation **In Resolution** means that the property owner has contacted the ZA and has indicated that
the violation will be corrected within a predetermined time period. The designation **Open** means that no response has been received and no additional contact has been made.

Attachment #2

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9841 ext. 1 website: www.lincolntwp.com e-mail: Ordinance103@gmail.com

July 2023 Ordinance Report

Debra Trim – Ordinance Enforcement Officer

Complaint 832 Hill St 7-7-23 drove by and took pictures, letter sent 7-10-23. The property has what looks like a trailer that has been torn apart.
On going.

Complaint 2169 S Jackson Ave metal debris and trash. Drove by 5-22-23 drove by and took pictures, sent letter 5-27-23. Owner called for more time, gave to until mid July. 7-11-23 owner called to say they would start clean up in 3 days. 7-17-23 owner left message that they are looking into hiring help to clean up.
On going.

Complaint 2261 Laurel Lane 4-30-23 drove by, took pictures and sent letter after house fire the burnt debris needs to be removed. 5-9-23 owner came to ask for more time, gave until June. 6-23-23 clean up started. 7-25-23 clean up not done, sent letter 7-28-23.
On going.

Complaint 333 S Jackson Ave 5-22-23 drove by, took pictures. Junk cars, wood piled under electrical line. Spoke with Fire chief about the danger, sent letter 5-27-23. 6-5-23 Owner of tree company called and agreed to move wood, called Consumers Power for their opinion.
Consumers sent a man out and he doesn't see a problem, will go speak with homeowner. 7-10-23 sent letter that wood under power lines does not need to be moved per Consumers Power but debris in yard needs to be removed. 7-30-23 Drove by and property has been cleaned up
Resolved.

Complaint 5421 Evarts Drove by 6-18-23 and took pictures. This lot had a mobile removed after a tree had fallen on it but the lot has debris that needs to be removed. Sent letter 6-29-23. Drove by 7-30-23 lot not cleaned, sent letter 7-31-23.
On going.

Complaint 225 Park Ave tree had fallen on house and was removed but the damage made the house unlivable. Sent follow up letter 6-12-23. Owner called 6-23-23 informing that the cabin will be removed within 2 weeks. 7-28-23 Sent letter of final notice for removal.
On going.

Complaint 1080 E Maple St Barking dog left outside when owner leaves. Sent letter and copy of ordinance 6-29-23. 7-10-23 barking still occurring, no response from home owner. Will arrange an officer to go with me to talk to dog's owner. 7-12-23 Animal Control went to talk with owner of dogs and so far no more barking. 7-16-23 Sent letter with copy of our ordinance to dog's owner to make aware of civil fees.
On going.

Attachment #3

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, MI 48633-0239 phone: [989] 588-9841 website: www.lincolntwp.com
e-mail: bor@lincolntwp.com

Clare County Community Services – Building Department [989] 539-2761 www.clareco-building.net

Permits Issued for July, 2023

(Permit Number)	(Parcel Number)	(Address)	(Brief Description)
PB23-00329	010-025-100-03	Section 25 No address	Demo of Ag Building
PB23-00341	010-328-006-01	1701 Bungo Tr.	Roof over Pole Barn
PB23-00365	010-680-192-00	5005 White Birch	Garage and Patio
PB23-00382	010-007-401-02	637 W. Shingle Lake Dr.	Demo
PB23-00386	010-621-005-00	980 E. Forest	New Roof
PE23-00301	010-240-006-00	5375 Evarts	Service Upgrade
PE23-00329	010-118-018-00	2238 W. Jefferson	Service Upgrade
PE23-00331	010-740-962-00	5651 Clover Ter.	Pole & Service
PE23-00341	010-281-004-00	434 Arbor	Pole Barn Service, Lights, Furnace
PE23-00358	010-009-400-19	3255 S. Jackson (Vanden)	Service Upgrade